CITY OF OPA-LOCKA
"The Great City"

CLERK'S ACTION SUMMARY MINUTES
RESCHEDULED REGULAR COMMISSION MEETING
November 12, 2009
7:00 P.M.
City Commission Chambers
777 Sharazad Boulevard
Opa-locka, FL 33054

1. CALL TO ORDER:

Mayor Joseph L. Kelley called the meeting to order at 7:00 p.m. on Thursday, November 12, 2009 in the City Commission Chambers, 777 Sharazad Boulevard, Opa-locka, Florida 33054.

2. ROLL CALL:

The following members of the City Commission were present: Commissioner Dorothy Johnson, Vice Mayor Myra L. Taylor, Commissioner Timothy Holmes and Mayor Joseph L. Kelley. Also in attendance were: Interim City Manager Bryan K. Finnie, City Attorney Burnadette Norris-Weeks, and City Clerk Deborah S. Irby. Commissioner Rose Tydus was not in attendance.

3. INVOCATION:

The Invocation was delivered by Mayor Joseph L. Kelley.

4. PLEDGE OF ALLEGIANCE:

The Pledge of Allegiance was recited in unison.

5. APPROVAL OF AGENDA:

6. APPROVAL OF CONSENT AGENDA AND PULL LIST (deferrals and deletions):

Request to amend the commission agenda to include the following resolution as item 12-1 (new items):

12-1: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, APPROVING CBHC, LLC AS THE MOST RESPONSIVE AND RESPONSIBLE BIDDER TO CARRY OUT SHERBONDY PARK PHASE I CONSTRUCTION IMPROVEMENTS; FURTHER AUTHORIZING THE CITY MANAGER TO NEGOTIATE AN AGREEMENT WITH CBHC AT A COST UP TO THREE MILLION THREE HUNDRED TEN THOUSAND ONE HUNDRED FIFTY-

ONE DOLLARS AND ZERO CENTS ($3,310,151.00) FOR FINAL APPROVAL BY THE CITY COMMISSION. *Sponsored by C.M.*

It was moved by Commissioner Holmes, seconded by Commissioner Johnson to amend the agenda to include the above resolution as item 12-1.

There being no discussion, the motion to amend failed by a 3-1 vote.

Commissioner Holmes	Yes
Commissioner Johnson	Yes
Vice Mayor Taylor	Yes
Commissioner Tydus	Not present
Mayor Kelley	No

Manager Finnie deferred agenda items 14A1 and 14A2.

Commissioner Johnson pulled agenda item 15-2 from the consent agenda (this item would be discussed separately under Action Items – Agenda Item # 11).

It was moved by Commissioner Holmes, seconded by Commissioner Johnson to approve the agenda, consent agenda and pull list.

There being no discussion, the motion passed by a 4-0 vote.

Vice Mayor Taylor	Yes
Commissioner Tydus	Not present
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Mayor Kelley	Yes

7. AWARDS/PROCLAMATIONS/ACKNOWLEDGEMENTS:

8. APPROVAL OF MINUTES:

Regular Commission Meeting – October 28, 2009

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to approve the minutes of the regular commission meeting of October 28, 2009.

There being no discussion, the motion passed by a 4-0 vote.

Commissioner Holmes	Yes
Commissioner Johnson	Yes
Vice Mayor Taylor	Yes
Commissioner Tydus	Not present
Mayor Kelley	Yes

9. DISTRICT ONE - COUNTY COMMISSIONER REPORT:

Mark Brown, Assistant to District 1 County Commissioner Barbara Jordan, came forward and briefly discussed the Tot Lot in the Magnolia North area in which the GSA department would be deeding that property over to the City of Opa-locka; the HUD homes; and the rehabilitation and beautification projects.

With regards to the Tot Lot in the Magnolia North area, Commissioner Johnson asked whether the city budgeted dollars for this project. If so, under what line item in the budget?

Faye Douglas, Assistant Finance Director, came forward and referred to page 185 of the adopted 2009-2010 City of Opa-locka Budget under project # 14 in the schedule. She said there is $50,000.00 budgeted in the current fiscal year for Magnolia Park Improvements.

10. PUBLIC PRESENTATION:

10a. CITIZENS' FORUM:

1. Steven Barrett of 633 Sharar Avenue, Opa-locka, Florida, appeared before the City Commission and stated that it was brought to his attention that the city still had a family & friends plan in terms of the water and it is still not an equal opportunity for the citizens.

He continued expressing his concerns relating to resolution no. 6 and stated that the resolution reads "acceptable to the City Attorney" but should instead read "acceptable to the City Commission".

He further requested should extra dollars come into the city that the City Manager considers the construction of sidewalks in the Sharar Avenue neighborhood west of Perviz Avenue.

Mayor Kelley informed Mr. Barrett that the Public Works Department is working on an overall plan for the city for sidewalk improvements.

2. Eddie of 13815 NW 23rd Avenue, Opa-locka, Florida, came forward to express his concerns relating to the baseball field at Ingram Park in terms of the maintenance.

Mayor Kelley stated that the field at Ingram Park is baseball compatible but if the maintenance hasn't been done then that's something the City Manager has to look into.

11. ACTION ITEMS (items from consent agenda pull list):

15-2: A RESOLUTION OF THE CITY COMMISSION OF THE CITYOF OPA-LOCKA, FLORIDA, DIRECTING THE CITY MANAGER TO WRITE A FORMAL LETTER OF APOLOGY TO THE FAMILY OF A. QUINN JONES, III ON BEHALF OF THE CITY COMMISSION. *Sponsored by M.T.*

The above resolution was read by title by Attorney Weeks.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to pass the above resolution.

Commissioner Johnson agreed that an apology should be rendered to the family of A. Quinn Jones, III; but she didn't think the apology should come from the City Commission itself because she would not feel comfortable apologizing for something she had not said. The individual who made the statement should apologize.

She continued by saying that she could not support legislation coming from the City Commission apologizing for what someone else said.

Vice Mayor Taylor stated that technically Commissioner Johnson is correct; however, theoretically, the City Commission acts as one group and they operate as a hand and when the hand makes a fist all the fingers fold. She said Commissioner Johnson is right in that it was perhaps said and sensitive by one person but that one person is part of that hand and that hand is a group which must work united. She thought it would be most appropriate if the Commission as a group would offer this letter of apology which is just a gesture of good will.

Commissioner Holmes stated that the night when the statement was made he called for a point of order and that discussion was suppose to cease but comments continued. During the last commission meeting, the Jones' family was present and what better opportunity to apologize to the family then but that didn't happen. He said he didn't agree with the resolution for the letter of apology.

Vice Mayor Taylor stated that "I'm Sorry" and "Thank you" are two words that are never too late and it doesn't matter what span of time; if it wasn't done then, the City Commission can do it now. Therefore, this is not a late gesture to do as an act of kindness.

Commissioner Johnson stated that the person who made the comments is not present at the meeting. Although she understood the intent, she could not agree with the process. She agreed with Commissioner Holmes that the proper time for apologies would have been at that meeting when the family was present. She suggested that the person should apologize to the family even if it's in a quiet setting because she already mentioned she was a friend of the family but she doesn't think it needs to be executed from the Commission.

Mayor Kelley suggested that the Commission reach out to the family individually which would be a more appropriate way. He disagreed with delegating that responsibility to the City Manager. He said he is one who talks about unity and the Commission needs to be united but when it comes to this issue, of course, one of his colleagues is not here and he would have preferred her presence regarding this issue. The City Commission can reach out to the family in their own way to express their opinions.

There being no further discussion, the motion failed by a 3-1 vote.

Commissioner Tydus	Not present
Commissioner Johnson	No
Vice Mayor Taylor	Yes
Commissioner Holmes	No
Mayor Kelley	No

12. NEW ITEMS:

13. PLANNING & ZONING:

A. HEARINGS:

B. APPEALS:

14. ORDINANCES/RESOLUTIONS/PUBLIC HEARING:

A. FIRST READING:

B. SECOND READING/PUBLIC HEARING:

1. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AMENDING CHAPTER 7 OF THE OPA-LOCKA CODE OF ORDINANCES ENTITLED "BUILDING, HOUSING AND STRUCTURAL REGULATIONS" BY CREATING ARTICLE I, SECTION 7-12 ENTITLED "SUITABILITY FOR HABITATION CERTIFICATE FOR SINGLE FAMILY RESIDENCES, CONDOMINIUM UNITS, TOWNHOUSES AND DUPLEXES ACQUIRED THROUGH CERTIFICATE OF TITLE, AND REQUIRING CERTIFICATION OF COMPLIANCE WITH APPLICABLE BUILDING CODES AND ZONING; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR CONFLICT AND REPEALER; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE (first reading held on October 28, 2009). *Sponsored by J.K.*

The above ordinance was read by title by Attorney Weeks.

Mayor Kelley opened the floor for a public hearing. There being no persons to speak on the public hearing, the public hearing was closed.

It was moved by Commissioner Holmes, seconded by Commissioner Johnson to pass the above ordinance.

There being no discussion, the motion passed by a 4-0 vote.

Vice Mayor Taylor	Yes
Commissioner Tydus	Not present
Commissioner Holmes	Yes

Commissioner Johnson	Yes
Mayor Kelley	Yes

2. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO ENTER INTO AN AGREEMENT WITH ATLAS PACKAGING, INC. AND SHIELDS LLC FOR WASTEWATER INFRASTRUCTURE IMPROVEMENT RELATED TO THE REHABILITATION OF PUMP STATION NO. 14, AT A COST NOT TO EXCEED TWO HUNDRED THOUSAND DOLLARS ($200,000.00); PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR CONFLICT AND REPEALER; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE (first reading held on October 28, 2009). *Sponsored by C.M.*

The above ordinance was read by title by Attorney Weeks.

Mayor Kelley opened the floor for a public hearing. There being no persons to speak on the public hearing, the public hearing was closed.

It was moved by Commissioner Holmes, seconded by Commissioner Johnson to pass the above ordinance.

There being no discussion, the motion passed by a 4-0 vote.

Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Not present
Vice Mayor Taylor	Yes
Mayor Kelley	Yes

C. RESOLUTION(S):

15. ADMINISTRATION:

CONSENT AGENDA:

1. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, URGING THE FLORIDA PUBLIC SERVICE COMMISSION TO ADOPT REGULATIONS THAT WOULD REQUIRE FLORIDA POWER & LIGHT TO ADOPT A REASONABLE NET-METERING PROGRAM THAT WOULD TAKE IMPLEMENTATION AND INSTALLATION OF SOLAR ENERGY MORE ECONOMICALLY FEASIBLE FOR FLORIDA MUNICIPALITIES; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by J.K.*

3. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE EXPENDITURE OF FIVE THOUSAND DOLLARS ($5,000.00) FOR A "HOLIDAY IN THE PARK TOY GIVE-AWAY" TO BE HELD ON DECEMBER 12, 2009 AND CARRYING OVER THE AMOUNT OF TWO THOUSAND FOUR HUNDRED DOLLARS ($2,400.00) FOR ALLOCATED

BUT UNUSED MONIES CONNECTED WITH THE "HEALTH/WELLNESS SHOWDOWN" RELATED TO THE OPA-LOCKA STEPPERS FOR A TOTAL AMOUNT OF SEVEN THOUSAND FOUR HUNDRED DOLLARS ($7,400.00) TO GO TOWARDS THE HOLIDAY IN THE PARK TOY GIVE-AWAY" EVENT, AND PAYABLE FROM ACCOUNT # 79-579402. *Sponsored by D.J.*

4. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE EXPENDITURE OF FIVE THOUSAND DOLLARS ($5,000.00) FOR THE PURCHASE OF TURKEYS TO BE DISTRIBUTED AT THE CITY'S ANNUAL TURKEY GIVE-AWAY TO BE HELD ON NOVEMBER 20, 2009, PAYABLE FROM ACCOUNT NO. 00120579403. *Sponsored by T.H.*

5. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO ENTER INTO AND EXECUTE AN AMENDMENT TO THE CONTRACT WITH THE FLORIDA DEPARTMENT OF CORRECTIONS, IN SUBSTANTIALLY THE FORM ATTACHED HERETO, FOR THE USE OF INMATE LABOR IN WORK PROGRAMS, IN AN AMOUNT NOT TO EXCEED FIFTY-SIX THOUSAND FOUR HUNDRED AND SIXTY-SEVEN DOLLARS ($56,467.00), PAYABLE FROM ACCOUNT NO. 41-541340. *Sponsored by C.M.*

6. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO ENTER INTO AND EXECUTE AN AGREEMENT WITH THE OFFICE OF THE STATE ATTORNEY FOR THE ELEVENTH JUDICIAL CIRCUIT OF FLORIDA FOR PROSECUTION OF CERTAIN CRIMINAL VIOLATIONS OF THE CITY OF OPA-LOCKA CODE OF ORDINANCES AND PROVIDING FOR REIMBURSEMENT OF COSTS TO THE STATE OF FLORIDA, IN A CONTRACT FORM ACCEPTABLE TO THE CITY ATTORNEY. *Sponsored by C.M.*

7. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO ACCEPT THE AWARD OF GRANT FUNDS FROM THE DEPARTMENT OF JUSTICE AND THROUGH THE MIAMI-DADE COUNTY OFFICE OF GRANTS COORDINATION FOR THE FY 2010 EDWARD J. BYRNE MEMORIAL JUSTICE ASSISTANCE GRANT (JAG) IN THE AMOUNT OF FOUR THOUSAND FIVE HUNDRED AND NINETY-EIGHT DOLLARS ($4,598.00) FOR THE PROVISION OF A SCHOOL RESOURCE OFFICER PROGRAM. *Sponsored by C.M.*

8. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO PIGGYBACK THE CITY OF MIAMI GARDENS INVITATION FOR BID FENCING CONTRACT (IFB) #07-08-040 FROM RONALD M. GIBBONS, INC., FOR THE PROVISION OF FENCING REPAIRS TO INGRAM PARK, SHERBONDY PARK AND SEGAL PARK IN AN AMOUNT NOT TO EXCEED SIX THOUSAND DOLLARS ($6,000.00) AND FROM ACCOUNT 74-572461. *Sponsored by C.M.*

9. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO ENTER INTO AN INTERLOCAL AGREEMENT WITH THE MIAMI-DADE COUNTY TRANSIT DEPARTMENT FOR FEDERAL PASS-THROUGH FUNDING ARRANGEMENTS ASSOCIATED WITH THE AMERICAN RECOVERY AND REINVESTMENT ACT (ARRA) OF 2009 FOR THE INSTALLATION OF BUS SHELTERS. *Sponsored by C.M.*

10. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, ACCEPTING THE PROPOSAL OF CHOICE ENVIRONMENTAL SERVICES, INC. FOR THE PROVISION OF RESIDENTIAL WASTE COLLECTION SERVICES PURSUANT TO RFP NO. 09-0821; FURTHER AUTHORIZING THE CITY MANAGER TO NEGOTIATE A PROFESSIONAL SERVICES AGREEMENT IN A FORM ACCEPTABLE TO THE CITY ATTORNEY AND FOR FINAL APPROVAL BY THE CITY COMMISSION. *Sponsored by C.M.*

The above consent agenda resolutions were read by title by Attorney Weeks.

It was moved Commissioner Holmes, seconded by Vice Mayor Taylor to pass the consent agenda resolutions.

The motion passed by a 4-0 vote.

Commissioner Holmes	Yes
Commissioner Johnson	Yes
Vice Mayor Taylor	Yes
Commissioner Tydus	Not present
Mayor Kelley	Yes

A. CITY MANAGER'S REPORT:

Manager Finnie publicly recognized the Parks & Recreation Department for an outstanding Veteran's Day program. He announced that for the third straight year, the Finance Department was recognized by the Government Finance & Officers for excellence in financial reporting reference the city's submission and review of the 2008 fiscal budget.

He reported his attendance at a meeting in Tallahassee regarding the Red Light Program and he is pleased to announce that testing would commence on November 21, 2009; however, the meeting in Tallahassee was a bit disturbing in that the State of Florida has identified these programs as a possible revenue stream and that there's legislation floating around that the state would look to share and regulate this program. The reality of revenue sharing is a possibility but in his discussions with the Mayor it's a little uncomfortable because the city always has to fund unmet obligations of the state.

He submitted to the Commission for their review a listing of assignments the Urban Rangers had recently worked on in terms of cleaning up abandoned properties. The city

will work the mechanics on placing a lien on these properties to get a returned investment.

He stated that he would be forwarding a plan to the Commission within the next couple of days for a clean-up initiative on Ali-baba Avenue from Opa-locka Boulevard to NW 22nd Avenue.

Finally, he stated that he would be requesting support for some retroactive investments because they need to purchase additional lawn equipment for the Urban Ranger. Additionally, the vacuum truck which is an important piece of equipment for the city needs repairs. He informed the Commission that he would email them but he anticipates on moving forward on these items immediately and requested their support for the retroactive expenditure items which would not exceed $8,000.00, excluding the vacuum truck.

Commissioner Johnson expressed her concerns in terms of tracker trailers parked in residential areas; foreclosures and abandoned properties in which the City Attorney should be bringing back a resolution at the next meeting to purchase some of the properties; newsletter promoting the Census 2010 to be included also on Opa-TV, the city's utility bills and interviews; getting back on schedule with the monthly Crime Watch Meetings with the Police Department being engaged; and the lack of Planning Council Meetings although there are pending items.

Manager Finnie advised that there is a pending item for the Planning Council which is a street vacation which was considered at the Planning Council Meeting on November 10, 2009 and should be before the Commission at the December 9, 2009 meeting.

Commissioner Johnson requested that the City Manager reserve the 2nd Floor at Town Center for crossing guard training on December 4, 1009 from 10:00 a.m. – 4:00 p.m. which would incorporate the City of Opa-locka and Miami Gardens.

She continued by expressing her concerns relating to the location of the bus benches. She directed the City Manager to reevaluate the sites for the bus benches.

She further stated that she would like to receive a quarterly report from each department by line item in terms of what is budgeted and what was spent. In addition to that, she asked to be provided with a report with all bills due and this should be provided at every meeting.

Commissioner Johnson stated that she was not in agreement and the city's charter does not support ratifying anything unless it is an emergency. Although she is aware that the equipment is needed for the Urban Rangers which she is in support of; but it needs to be brought back in front of the Commission with three (3) quotes to choose from because the City Manager recommends but doesn't select. She suggested that the City Manager hold off on the purchase of equipment and bring it to the Commission.

Vice Mayor Taylor congratulated the Finance Department for the award and the City of Opa-locka Parks & Recreation Department for the Veterans Day Celebration.

She continued by expressing her concerns relating to 14260 NW 22nd Court which is an abandoned house that is being squatted and the grass needs cutting. She directed the City Manager to bring back the cost for speed bumps on Burlington Street near Nathan B. Young Elementary and NW 143rd Street so that she can sponsor the resolution.

She further asked for the rule in terms of uprooting specific trees that are tearing up the sidewalks.

Lavelle Jenrette of the Public Works Department said he would research the issue and get back to the City Manager because he would have to know the type of tree.

Commissioner Holmes advised that the citizens in the 1100 block of Kasim Street are complaining about the abandoned house at 1110 Kasim Street. He directed the City Manager to have Code Enforcement take a look at the house and board it up.

Additionally, he thanked the City Manager, the Parks & Recreation Department, IT Department and Opa-Tv for a job well done at the Veteran's Day Celebration on November 11, 2009

Commissioner Johnson requested for increased police visibility from the Police Department since the time had changed and the children are going to school in the dark. She suggested that the City Manager contact Miami-Dade County Public Schools for those bus stop areas.

She continued by saying that staff had put together some wonderful programs but she didn't see the total support of all staff in attendance. She encouraged the City Manager to have staff more visible to those functions so that the community can see their involvement other than 9a.m. – 5p.m.

Mayor Kelley stated that the City Commission passed the foreclosure ordinance for a process in terms of responsibility for property maintenance. He'd been asking for quite some time for a job creation program and he thought it would be on tonight's agenda because many challenges with foreclosed and abandoned properties the city could address and serve two purposes not only dealing with those properties but also create jobs for citizens here in the City of Opa-locka. He expressed his disappointment with not seeing the item for a job creation program on the agenda.

Manager Finnie assumed responsibility for that item not being placed on the agenda but it's virtually done and it would be placed on the next agenda.

Mayor Kelley expressed his frustration in terms of the next meeting being in December which means they are now looking at January and the city's staff is already stretched thin whether it's the Urban Rangers or the regular Public Works staff trying to deal with these issues. This item would have addressed the issue and created jobs for citizens.

In terms of the statement made by the City Manager with regards to the unfunded mandates and the proposal coming down from the state level, he suggested that the City

Manager stay on top of that issue. The City Manager mentioned that the equipment needed for the rangers would be brought forth at the next meeting; however, he always thought the city had at least two sets of equipment. He asked, what is going on with the equipment?

Manager Finnie stated that the equipment had aged and what's happening is that the city does have sets of equipment but when something breaks down, two lawnmowers now become one.

Mayor Kelley stated that this also goes back to the point of not having addressed the landscaping issue; therefore, staff is cutting the grass overworking one or two lawnmowers. But even with old or aged equipment, someone in Public Works should recognize its aging because most of the time when purchasing equipment, there's a 3 – 5 year life span anyway. If the equipment was getting old then there should have been a recommendation to the Commission during the budget process to upgrade the equipment. Now they are at the point where three entities are sharing a mower and that shouldn't be occurring.

B. ACCOUNTS PAYABLE:

Ezekiel Orji, Finance Director for the City of Opa-locka came forward and stated that he is working on the report of expenditures and revenues to be provided to the Commission via interoffice mail due to this being the only regular meeting in November. The city is paying all bills as they become due and properly approved.

Commissioner Johnson asked Dr. Orji if he understood her request for future meetings.

Dr. Orji requested to speak to Commissioner Johnson at a later time to make sure they are on the same page. Commissioner Johnson agreed.

16. OFFICIAL BOARD REPORTS:

17. CITY ATTORNEY'S REPORT:

Commissioner Johnson requested to get together with the City Attorney to discuss the deferred resolution at the last meeting regarding contracts and agreements which was supposed to be brought back; however, she didn't see it on the agenda.

Although she voted "yes" for the resolution relating to the residential waste services, she said she is concerned, assuming the City Manager received legal advisement from the City Attorney, with the 120 day extension to another provider, as to when the next one would take place. She asked Attorney Weeks whether the City Manager received legal advisement on this issue.

Attorney Weeks replied, no.

Commissioner Johnson questioned the extension when all agreements for legal sufficiency go through the legal department to make sure they are within legal

sufficiency. She asked, when does the agreement for residential solid waste just passed by the City Commission by resolution take effect?

Attorney Weeks said that to address the specific question asked by Commissioner Johnson, she didn't discuss that specific issue with the City Manager. However, they did review and she gave comments to the RFP issue and she'd spoke to the City Manager about the issue in general of the RFP and what her recommendations were on the documents specifically.

Commissioner Johnson stated that from this point forward if there is anything the City Attorney is recommending then she needs to consult with the City Commission because of the importance of having legal sufficiency. She asked, how could the residential solid waste resolution be under the Consent Agenda when you have two agreements overlapping? She stated to the City Manager that she really didn't want an answer as to how this happened because she strongly feels it shouldn't have happened and the City Manager and City Attorney should get together.

Attorney Weeks advised that there were two separate contract issues; one of them had an automatic renewal clause in it and that may be the one being referred to and then the other one, it was fine to put out for bid.

Manager Finnie stated that he would provide the Commission with a report on the matter.

Commissioner Johnson requested to be provided with the report by 9:00 a.m. the following morning.

Mayor Kelley directed the City Manager to provide a copy of the report to the Commission as well.

Commissioner Johnson said she had asked and she is not sure whether the City Clerk spoke to the City Attorney about a resolution for a $2,000.00 donation to the Black Global Bikers Association for their annual toy run for children with special needs.

Attorney Weeks apologized because she had no knowledge of this item and said she would make sure it is on the next agenda.

Commissioner Johnson proposed a motion since it would be too late at the next commission meeting.

Attorney Weeks advised that the City Commission could approve the item without it being on the agenda.

Mayor Kelley interjected and stated that he is planning on calling a special meeting before the next regular meeting and Commissioner Johnson should consider placing the resolution on that agenda.

Vice Mayor Taylor asked, has the city conducted an assessment of all vendors and professional services to see that they have active contracts?

Attorney Weeks stated that this would fall under the contract administrator for the city; however, she had pulled out in every way possible any files that had contracts in them but all of those matters go through the City Clerk's Office and the City Manager keeps certain things. The City Manager would have better information on all contracts and what's existing.

Manager Finnie added that over the last few months there were many debacles with contracts so he instructed staff which they have completed a complete listing of all contracts with the commencement and expiration dates. This came out of the exercise of pulling all contracts from a previous directive from the Commission and he is now centralizing the contracts and getting the dates down. He said he will send out a form listing all contracts to each department so that each department director signs off on the form and their responsible for making sure all contracts belong to their department and anything missing should be included on the list so that he can begin a centralized depository for contracts.

Vice Mayor Taylor asked, are the contracts in different departments?

Manager Finnie replied that the responsibility for managing contracts is diversified.

Vice Mayor Taylor said it was not a good thing to have contracts in the different departments and it should be all brought together. She asked, where do the contracts belong? She said she would think an original would go one place and a copy to another or have several originals. She expressed her concerns in terms of the dates not being adhered to and the city missing deadlines because all contracts do not flip over. If the contracts are in a centralized place when the appointed officials meet they can discuss the upcoming contracts.

Manager Finnie reassured Vice Mayor Taylor that he is in the process of centralizing all contracts.

Vice Mayor Taylor directed the City Manager to retrieve the contracts from the city departments because no one is watching them. She said this was really for the City Attorney because the City Attorney is a part of the negotiations.

Attorney Weeks advised that typically there's a contract manager and a lot of times that's done by the procurement area and the contract manager would monitor dates and so forth; however, in Opa-locka it's done by departments.

Vice Mayor Taylor asked, does the City Commission need an ordinance to fix this issue?

Attorney Weeks stated that the City Commission can pass a resolution.

Vice Mayor Taylor said she wants this to be a law to say this is where all contracts go when signed; a copy to the person and an original to whomever.

Manager Finnie said he would bring back a memorandum at the next available meeting to rule out the centralizing process and who's responsible.

Vice Mayor Taylor directed the City Manager to make a recommendation on this issue to the Commission.

Attorney Weeks asked Vice Mayor Taylor if she wanted an ordinance or a memorandum is going to be fine for this purpose.

Vice Mayor Taylor stated that she wants a memorandum of recommendation and from that she would sponsor the ordinance.

After hearing the discussion reference contracts, Commissioner Holmes said that no one has yet to mention the keeper of the records who is the City Clerk and all signed contracts are supposed to go to the City Clerk. For some reason, he said that the City Clerk's Office is overlooked; however, from this point forward, he wants to see a copy of all contracts filed in the City Clerk's Office.

Commissioner Johnson stated that historically the City Attorney has always advised the Commission when a contract was going to expire and she doesn't know how they got to the City Manager doing it. The former City Attorney always advised the City Commission 30 days prior to the expiration of a contract and the city must go back to the way that is was being done which was by the City Attorney.

She continued by saying she was not comfortable with what happened with agenda item 15-10 and the City Attorney should be thinking about what the Commission needs to do to rectify this issue.

Mayor Kelley stated that the overall concern from the Commission is communication and making sure the contracts are received and in the proper place. He said he would await the memorandum from the City Manager before making his comments.

18. CITY CLERK'S REPORT:

Clerk Irby reported that she was continuously working on the Census 2010. She continued by reading two letters into the record that were addressed to Mayor Joseph L. Kelley: (1) letter from Russell Benford, City Administrator from the City of West Park complimenting Mayor Kelley and the City of Opa-locka on the October 29, 2009 Miami Herald article entitled "Opa-locka Students Learn First Hand What It Takes to Run a City" and (2) letter from the United States Department of Commerce Economic & Statistics Administration, U.S. Census Bureau regarding acceptance of the additional housing data submitted increasing the July 1, 2008 population estimate for the City of Opa-locka from 15,287 to 16,574.

Commissioner Johnson directed the City Clerk to get with the City Manager because the promotion for the Census is very crucial. She said she would like to see a newsletter for the Census in addition to promoting the Census on Opa-TV, banners, and information on the utility bills.

Clerk Irby stated that those items were requested months ago and she hasn't received any response. She said she has Census materials in her office and she had been distributing that information to the citizens whenever they came in to pay their water bills.

Vice Mayor Taylor congratulated the City Clerk on the letter because they worked hard in 2000 and the city was undercounted. She said she was glad to be on board with the City Clerk and Commissioner Johnson and she would do everything possible to help with the Census.

Mayor Kelley stated that the Census is important because it translates into dollars because he thinks about the dollars the city is trying to get and when going into to meetings trying to get revenue, every dollar does count and every citizen needs to be counted. He said he would hope that the City Clerk takes the lead with the Census and the City Manager and staff can work with her in terms of the media, etc.

On behalf of the City Clerk and her office, Commissioner Holmes stated that the City Clerk has sat there plenty of times and stated that she is not receiving signed contracts.

19. MAYOR/COMMISSION REPORT:

Commissioner Holmes thanked the City Manager and Christine Gordon for an excellent Press Release for Veterans Day and for an excellent flyer for the Turkey Give Away.

He announced that his annual turkey giveaway would be held on Friday, November 20, 2009 @ 1:00 p.m. He thanked all businesses who contributed to this cause.

Commissioner Johnson reported that she had asked the City Manager to put an alert out because she received an email indicating that her Bank of America card was deactivated but it was a fraud. She encouraged everyone who received a similar email not to respond.

Manager Finnie added that there was a similar incident with the AvMed card where it was indicated that someone did not have coverage but this was a computer mistake.

Commissioner Johnson reported that she was nominated for the 2nd Vice President for the Women in Municipal Government and she would travel to Orlando on November 18, 2009. Last week she conducted the diversity training and conflict resolution for the Crossing Guard for Miami Gardens and Opa-locka and the next training session will be held on December 4, 2009. In addition, she would start working with the City Manager to start additional training for the employees at no cost to the city.

She continued by reporting that she was the keynote speaker for Florida Memorial University and she received a telephone call from the Campaign for Volunteerism for the students to get into the community and volunteer work. She said she would coordinate the volunteers to get more involvement.

Vice Mayor Taylor congratulated Commissioner Johnson in her nomination as 2nd Vice President and said she was going for Treasurer in Women in Municipal Government which is a beautiful organization.

She reported that on November 5, 2009, she had the opportunity to meet with the Canal Maintenance Division, the Division Chief, and part of her staff concerning the canals. She was concerned because there seemed to be no collaboration or cooperation between the county and the City of Opa-locka. At that meeting she learned that some of the things the county said it was doing had not been done in terms of the canals. The city also received a schedule where they will coordinate so that the canals could be done together. Additionally, she received information on the flood gates which do open on occasion in order to prevent flooding and the trash from somewhere else does come and settle in the city. She asked about the barge but the barge is only there for construction purposes.

She continued to ensure the citizens that they would see a difference with the canals. The county has provided a schedule and agreed to call the city when they come out to clean the canals.

Commissioner Johnson suggested that Vice Mayor Taylor share the schedule with the City Commission. Vice Mayor Taylor agreed.

Vice Mayor Taylor thanked the Commission for the street co-designation for VanKara Street. This event is scheduled to take place on November 21, 2009 at 10:00 a.m.

Commissioner Johnson informed Vice Mayor Taylor that on November 21, 2009, CAA has an all day training that she is attending as an appointee of that board.

After hearing from Vice Mayor Taylor that there were some things the county wasn't doing in terms of the canals that staff didn't know was taking place, Mayor Kelley asked, why wasn't staff aware of that?

Manager Finnie stated that there was a meeting and the county indicated they were doing some things and the city staff indicated that they were not doing those things.

Mayor Kelley asked, had staff mentioned anything prior to that meeting?

Manager Finnie replied, no.

Mayor Kelley reported that he holds his Faith Based Initiative Meetings and prayer once a month and he attended the monthly Miami-Dade County League of Cities Board of Directors Meeting. He commended the Opa-locka Police Department and all those involved in the memorial service for Officer Lacks held on Tuesday, November 10, 2009.

He continued by reporting that he attended a meeting with the City of Miami along with the CET coordinator, Major Barrett regarding trying to get technical support, assistance and funding to assist in that program effort and they have agreed to work with the city by providing technical training.

He thanked the Commission for supporting the foreclosure ordinance which would accomplish a lot in terms of the line of responsibility during that process. Once the legislation for job creation is passed, it would not only clean up abandoned properties but create jobs as well.

He announced that the Annual Senior's Luncheon will be held on November 23, 2009 at 11:30 a.m.

He further thanked staff and everyone involved in the Delegation for Thailand's visit to the city which was an upper level contingent of individuals.

Commissioner Johnson announced that the Mayor was the recipient for the 2009 Gate Keeper Award on Saturday, November 7, 2009.

20. OFFICIAL BOARD APPOINTMENTS:

21. ADJOURNMENT:

There being no further business to come before the City Commission, it was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to adjourn the meeting at 8:38 p.m.

ATTEST:

MAYOR

CITY CLERK